

		Therefore, the Motion to Strike the Answer is GRANTED, and Defendant is allowed 60 days leave to amend to retain counsel to represent it herein. Clerk to give notice.
107	Randall vs. Meinecke 25-01481512	Motion for Leave to File Cross-Complaint Defendant The Irvine Company dba Oak Creek Golf Club (“Defendant”) moves for an order granting it leave to file a cross-complaint for express and implied indemnity, contribution, and declaratory relief against defendant California Society for Healthcare Engineering, Inc. Code of Civil Procedure section 428.10(b) provides that a defendant may file a cross-complaint if the cause of action asserted: “(1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.” If such a cross-complaint is not filed at the same time as the defendant’s answer or before the court sets the first trial date, leave to file is required. (Id. § 428.50.) Leave to file may be granted “in the interest of justice at any time during the course of the action.” (Id. § 428.50(c).) The proposed cross-complaint would not add any new parties to the action, the case is still in its early stages, and granting leave to amend would not pose any prejudice to any parties. Thus, the unopposed Motion for Leave to File Cross-Complaint is GRANTED. Defendant is ordered to file and serve the cross-complaint within 10 days. Moving party to give notice